

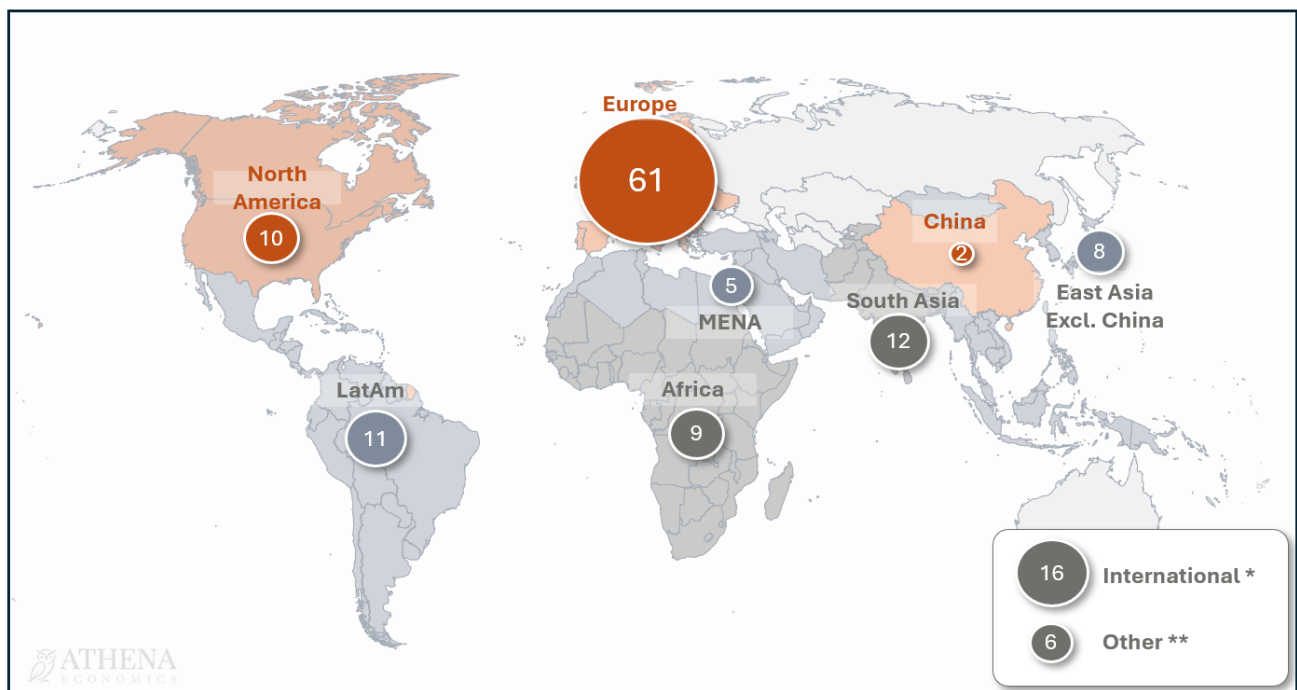
Revisions to Chapter VII: *Initial observations on participation in the public consultation*

The OECD published yesterday, on August 24, 2026, the comments received on the proposed revisions to Chapter VII of the Transfer Pricing Guidelines. With several thousand pages of comments, any assessment of the substantive positions will necessarily take time. A first look at the composition of the respondents nevertheless provides some useful context.

Geographies of the contributors: old and new trends

Europe continues to account for the largest share of respondents. South Asia and, increasingly, Africa are more visible than in earlier transfer pricing consultations. China, by contrast, remains strikingly under-represented: only two of the 140 contributions can be attributed to Chinese respondents.

Number of contributions to the Public Consultation Document
“Revisions to Chapter VII of the OECD Transfer Pricing Guidelines”, by country



Source: OECD public comments on the 2026 consultation on revisions to Chapter VII of the OECD Transfer Pricing Guidelines. Athena Economics analysis. Geographic classification based on contributor affiliation and therefore subject to judgement.

*: international consulting networks and international organisations/business associations..

** : geographic affiliation not reliably identifiable

Circle area is proportional to the number of contributions.

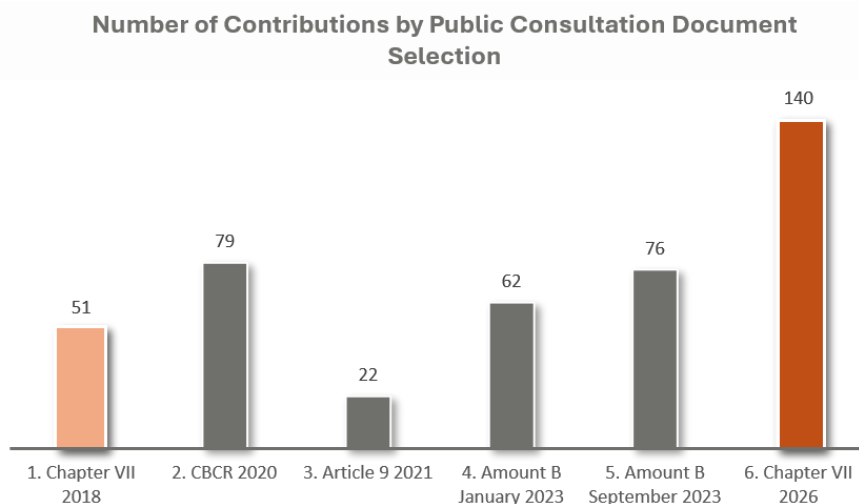
This appears to be a persistent feature rather than a 2026 development. Across the OECD transfer pricing consultations reviewed since 2018, Chinese participation in the public consultation process has remained very limited. This is noteworthy in the context of Chapter VII.

China has long developed a relatively distinctive approach to intra-group services, in particular regarding the benefit test, duplication, shareholder activities and the relationship between service charges and other related-party transactions. Limited participation in OECD public consultations should therefore not be interpreted as an absence of policy views on these issues.

The rise in African participation, with 9 contributions (zero in 2018), points to a different dynamic. Intra-group service charges have particular relevance for many source jurisdictions, where the benefit test, allocation of central costs, documentation and the interaction with withholding taxes can have direct implications for the local tax base.

A high level of participation

The level of participation is significant. The current consultation attracted 140 contributions, compared with 51 responses to the OECD's 2018 consultation on the future revisions to Chapter VII. The consultations are not directly comparable, but the difference is notable.



Source: OECD public comments, Athena Economics analysis.

1: Call for input - Scope of the future revision of Chapter IV (administrative approaches) and Chapter VII (intra-group services) of the Transfer Pricing Guidelines - 20 June 2018

2: Public consultation document - 2020 Review of Country-by-Country Reporting (BEPS Action 13 Minimum Standard) - 6 March 2020

3: Public consultation document - Proposed changes to Commentaries in the OECD Model Tax Convention on Article 9 and on related articles - 28 May 2021

4: Public consultation document - Pillar One – Amount B - 25 January 2023

5: Public consultation document - Pillar One – Amount B - 1 September 2023

6: Public consultation document - Revisions to Chapter VII of the OECD Transfer Pricing Guidelines - 22 July 2026

Concluding Remarks

These observations should not be overstated. Participation in a public consultation is neither a measure of influence nor an indication of the positions that will ultimately be taken by tax administrations.

They do, however, provide some context for reading the substantive comments.

A subsequent review will consider the substantive positions expressed by respondents, including on the benefit test, shareholder activities, operational transfer pricing, value-adding intra-group services and dispute prevention and resolution.